

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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DEAN HOLDER,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

SERGEANT KEVIN MCCARTHY (Tax # 949290),
SERGEANT JOHN HENDERSON (Tax # 925622),
DETECTIVE LOUIS DEFRANCO (Tax # 952648) and
DETECTIVE MAX ROLFFOT (Tax # 949566),

The plaintiff resides at:
Kings County, New York

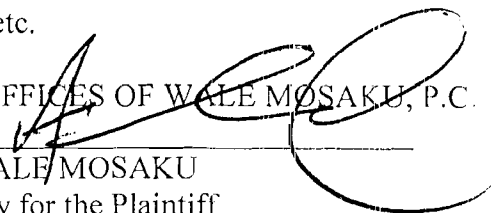
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
June 18, 2018

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SERGEANT KEVIN MCCARTHY (Tax # 949290)
Defendant *pro se*
77th Police Precinct

127 Utica Avenue
Brooklyn, NY 11213

SERGEANT JOHN HENDERSON (Tax # 925622)
Defendant *pro se*
154 Lawrence Avenue
Brooklyn, NY 11230

DETECTIVE LOUIS DEFRANCO (Tax # 952648)
Defendant *pro se*
Narcotics Borough Manhattan South
1 Police Plaza
New York, New York 10038

DETECTIVE MAX ROLFFOT (Tax # 949566)
Defendant *pro se*
154 Lawrence Avenue
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
DEAN HOLDER,

Plaintiff,

-against-

COMPLAINT

SERGEANT KEVIN MCCARTHY (Tax # 949290),
SERGEANT JOHN HENDERSON (Tax # 925622),
DETECTIVE LOUIS DEFRANCO (Tax # 952648) and
DETECTIVE MAX ROLFFOT (Tax # 949566),

Defendants.

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DEAN HOLDER (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants SERGEANT KEVIN
MCCARTHY (Tax # 949290), SERGEANT JOHN HENDERSON (Tax # 925622),
DETECTIVE LOUIS DEFRANCO (Tax # 952648) and DETECTIVE MAX ROLFFOT
(Tax # 949566) (collectively referred to as "defendants"), upon information and well
founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff is an African American male of full age.

3. At all relevant times, defendants, upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
4. At all times herein, the defendants were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
5. The plaintiff sues all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS

6. On or about December 31, 2015, at approximately 03:00 a.m., the plaintiff was unlawfully arrested on a sidewalk at the intersection of East 22nd Street and Newkirk Avenue, in Brooklyn, New York ("subject location") by the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566).
7. Prior to the time of the plaintiff's arrest as set forth above, the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) had stopped the plaintiff as he was walking down the street and minding his own business.
8. That at the time the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) stopped the plaintiff as set forth above, they had no reasonable basis to suspect that the plaintiff had committed a crime.
9. That following their initial stop of the plaintiff, the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) conducted an illegal and unlawful search of the plaintiff.

10. That at the time the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) searched the plaintiff as set forth above, they had no individualized reasonable basis to suspect that the plaintiff was in possession of illegal or unlawful drugs or weapons.
11. Following the arrest of the plaintiff by the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566), the defendants SERGEANT JOHN HENDERSON (Tax # 925622) and DETECTIVE LOUIS DEFRANCO (Tax # 952648) arrived at the subject location.
12. At the time the defendants SERGEANT JOHN HENDERSON (Tax # 925622) and DETECTIVE LOUIS DEFRANCO (Tax # 952648) arrived at the subject location, they were accompanied by non-party Detective Benjamin Lopez.
13. Prior to December 31, 2015, non-party Detective Benjamin Lopez had interacted with, and knew the plaintiff.
14. That prior to the plaintiff's arrest by defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566), a complainant named Natasha Oliver ("Ms. Oliver") had called 911, and reported a burglary incident within her resident premises that had occurred on December 31, 2015, at approximately 01:00 a.m.
15. That upon information and well-founded belief, prior to arriving at the subject location, defendants SERGEANT JOHN HENDERSON (Tax # 925622), DETECTIVE LOUIS DEFRANCO (Tax # 952648) and non-party Detective Benjamin Lopez had reviewed surveillance footage within the residence Ms. Oliver.
16. That upon information and well-founded belief, the surveillance footage that defendants SERGEANT JOHN HENDERSON (Tax # 925622), DETECTIVE LOUIS DEFRANCO (Tax # 952648) and non-party Detective Benjamin Lopez had reviewed clearly depicted

- the perpetrator of the burglary incident, and it was clear and obvious that the perpetrator of the burglary incident was not the plaintiff.
17. That following the arrest of the plaintiff, the non-party Detective Benjamin Lopez was designated the "arresting officer", even though the defendants SERGEANT JOHN HENDERSON (Tax # 925622) and DETECTIVE LOUIS DEFRANCO (Tax # 952648) knew that the plaintiff was not the perpetrator of the burglary incident depicted within the surveillance footage that they had reviewed before arriving at the subject location.
18. That furthermore, defendant SERGEANT KEVIN MCCARTHY (Tax # 949290) had also reviewed the same surveillance footage that the defendants SERGEANT JOHN HENDERSON (Tax # 925622), DETECTIVE LOUIS DEFRANCO (Tax # 952648) and non-party Detective Benjamin Lopez had reviewed, and indeed, had saved said footage to a USB flash drive that was in his possession. Thus defendant SERGEANT KEVIN MCCARTHY (Tax # 949290) knew that the plaintiff was not the perpetrator of the burglary incident
19. Nevertheless, the plaintiff was arrested as set forth above.
20. Non-party Detective Benjamin Lopez, in a criminal complaint that was filed in Kings County Criminal Court (Docket # 2016KN000006), accused the plaintiff of having committed, *inter alia*, a burglary, on or about December 31, 2015, at approximately 01:00 a.m., within the residence of Ms. Oliver.
21. Furthermore, following the plaintiff's arrest, the plaintiff was not directly identified by Ms. Oliver as the perpetrator of the offense she complained of.
22. Non-party Detective Benjamin Lopez further claimed that at the time he arrested the plaintiff, he recovered "*a pipe with crack cocaine residue*" from the plaintiff's "*shoe*".
23. That claim by Non-party Detective Benjamin Lopez was a blatant lie as the Non-party Detective Benjamin Lopez did not recover anything

illegal from the person of the plaintiff, much less "*a pipe with crack cocaine residue*" from the plaintiff's "*shoe*".

24. Furthermore, the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566), who had searched the plaintiff before the arrival of non-party Detective Benjamin Lopez at the subject location, did not recover a purported "... *pipe with crack cocaine residue*" from the plaintiff's "*shoe*".
25. Within the criminal complaint, Non-party Detective Benjamin Lopez charged the plaintiff with the following crimes/offenses:
 - a. Burglary in the 3rd Degree [P.L. 140.20];
 - b. Possession of Burglar's Tools [P.L. 140.35];
 - c. Criminal Mischief in the 4th Degree [P.L. 145.00(1)];
 - d. Petit Larceny [P.L. 155.25];
 - e. Criminal Possession of Stolen Property in the 5th Degree [P.L. 165.40];
 - f. Criminal Trespass in the 3rd Degree [P.L. 140.10(A)];
 - g. Trespass [P.L. 140.05]; and
 - h. Criminal Possession of a Controlled Substance in the 7th Degree [P.L. 220.03].
26. Upon arraignment, the plaintiff pled "*not guilty*". However bail was set in an amount that the plaintiff could not afford to post. As such, the plaintiff was remanded to the Rikers Island Correctional Facility, where he remained until approximately 11:00 p.m. on January 5, 2016, when he was released.
27. The criminal charges against the plaintiff were dismissed on February 25, 2016.
28. At the time of the plaintiff's arrest, the defendant SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) assaulted and battered the plaintiff by forcefully handcuffing the plaintiff against his will and without his consent, causing the plaintiff to suffer bruising, lacerations, pain and discomfort.

CAUSE OF ACTION AGAINST DEFENDANTS SERGEANT KEVIN
MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566):
UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

29. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
30. Following the plaintiff's arrest, the defendant officers SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) searched/strip searched and/or caused the plaintiff and/or his property to be searched/strip searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.
31. As a result of the foregoing, the plaintiff and/or his property was/were subjected to illegal and improper search(es)/strip search(es) by defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566).
32. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
33. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION AGAINST DEFENDANTS SERGEANT KEVIN
MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566):
FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW
YORK STATE LAW

34. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 33 of this complaint as though fully set forth herein.
35. The above-described respective arrest, detention and imprisonment of the plaintiff by the defendants SERGEANT KEVIN MCCARTHY

(Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.

36. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
37. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566), individually and severally.

CAUSE OF ACTION AGAINST DEFENDANTS SERGEANT KEVIN MCCARTHY (Tax # 949290), DETECTIVE MAX ROLFFOT (Tax # 949566), SERGEANT JOHN HENDERSON (Tax # 925622) and DETECTIVE LOUIS DEFRANCO (Tax # 952648): FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

38. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. Each defendant officer had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
40. Each defendant officer failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
41. As a consequence of each defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.

Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

42. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
43. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST DEFENDANTS
SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT
(Tax # 949566): EXCESSIVE FORCE

44. Plaintiff repeats and realleges paragraphs 1 through 43 as if each paragraph is repeated verbatim herein.
45. As set forth above, the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) assaulted plaintiff, battered plaintiff, and subjected plaintiff to excessive force and summary punishment.
46. The defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566) were at all material times acting within the scope of their employment.
47. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants SERGEANT KEVIN MCCARTHY (Tax # 949290) and DETECTIVE MAX ROLFFOT (Tax # 949566), individually and severally.

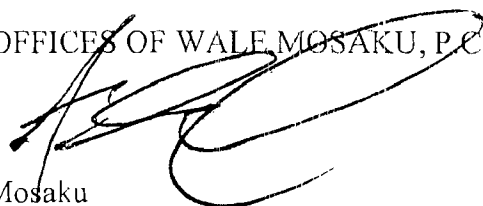
WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of

money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
June 18, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

By:

A handwritten signature in black ink, appearing to be 'Wale Mosaku', written over the printed name and address.

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

DEAN HOLDER,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

SERGEANT KEVIN MCCARTHY (Tax # 949290),
SERGEANT JOHN HENDERSON (Tax # 925622),
DETECTIVE LOUIS DEFRANCO (Tax # 952648) and
DETECTIVE MAX ROLFFOT (Tax # 949566),

Defendants.

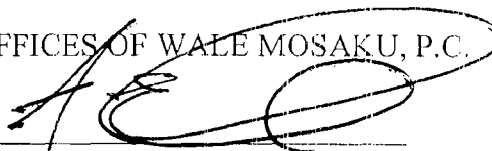
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
June 18, 2018

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994